

25AVCV00481 25AVCV00481

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Case Number: 25AVCV00481 Hearing Date: August 18, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

LILLIAN LOUISE JOHNSON,

Plaintiff,

v.

GENERAL MOTORS, LLC, a limited liability company; and DOES 1 through 10, inclusive,

Defendants.

Case Number 25AVCV00481

[TENTATIVE]

ORDER ON MOTION

Date of Hearing: August 18 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a Song-Beverly action arising from Plaintiff Lillian Louise Johnson's (Plaintiff) purchase of a new vehicle from Defendant General Motors, LLC (Defendant) and Defendant's alleged violation of its statutory obligations under the Song-Beverly Consumer Warranty Act (Song-Beverly Act). Plaintiff moves the Court for an order of attorney's fees, costs, and expenses pursuant to the parties' settlement agreement.

On April 14, 2025, Plaintiff filed a complaint against Defendant, asserting two causes of action for (1) breach of express warranties in violation of the Song-Beverly Act, and (2) breach of implied warranty in violation of the Song-Beverly Act.

Specifically, Plaintiff alleges that on August 24, 2024, Plaintiff acquired a 2024 Cadillac Lyriq (Vehicle). (Compl., ¶ 6.) Plaintiff claims that during the warranty period, Defendants violated the Song-Beverly Act in failing to conform the Vehicle to the express written warranties within a reasonable number of repair attempts or within the warranty period and by failing to promptly replace the Vehicle or provide restitution. (Compl., ¶ 12.)

On April 8, 2026, Plaintiff filed a notice of settlement of the entire case.

On May 11, 2026, Plaintiff filed the present motion for attorney's fees.

On August 5, 2026, Defendant filed its opposition.

On August 11, 2026, Plaintiff filed her reply.

II. Legal Standard

Standard for Motion for Attorney's Fees, Costs, and Expenses – Under Civil Code section 1794, subdivision (d), the prevailing buyer under the Song-Beverly Consumer Warranty Act is entitled to fees that were reasonably incurred: "If the buyer prevails under this section, the buyer shall be allowed by the Court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) The trial court has an obligation to award only those attorneys' fees that are reasonable. (See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095-96; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) A prevailing party includes the party with a net monetary recovery in settlement of the case. (Code Civ. Proc., § 1032, subd. (a)(4).)

The lodestar method is the primary method for determining a reasonable attorney fee award under section 1794, subdivision (d). (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 818-19.) "A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the careful compilation of the time spent and reasonable hourly compensation of each attorney involved in the presentation of the case." (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321 [internal quotations omitted].) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (*Wilkerson v. Sullivan* (2002) 99 Cal.App.4th 443, 448 [citations omitted].) "The basis for the trial court's calculation must be the actual hours counsel has devoted to the case, less those that result from inefficient or duplicative use of time." (*Horsford v. Board of Trustees Of California State University* (2005) 132 Cal.App.4th 359, 395.) "The law is clear, however, that an award of attorney fees may be based on counsel's declarations, without production of detailed time records." (*Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1375.)

In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of “fees customarily charged by that attorney and others in the community for similar work.” (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664; see also Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009 [“[R]ate determinations in other cases, particularly those setting a rate for the plaintiffs’ attorney, are satisfactory evidence of the prevailing market rate.”].)

III. Discussion

Application – Plaintiff requests an order for attorney’s fees, costs, and expenses amounting to \$9,254.35 pursuant to a signed settlement agreement (Settlement), the Song-Beverly Consumer Warranty Act, California Civil Code section 1794, subdivision (d), and calculated using the lodestar formula. (Notice of Motion, p. i:26-ii:3; Motion, p. 3:16-19.) This amount consists of (1) \$8,668.50 for attorney’s fees billed for 17.6 hours of work and (2) costs in the amount of \$585.85. (Morrow Decl., ¶¶ 9, 11, Ex. 1-2.)

a. Entitlement to Attorney’s Fees, Costs, and Expenses

Here, there is no dispute that Plaintiff is the prevailing party to this litigation, or that she is entitled to recover reasonable attorney’s fees, costs, and expenses incurred in litigation. The settlement offer establishes that Plaintiff accepted the offer, which states, in relevant part, “GM LLC shall pay to Plaintiff Counsel...(ii) Reasonable attorneys’ fees, costs, and expenses pursuant to subdivision (d) of Section 1794 of the Civil Code shall be determined by the court by way of a noticed motion. Defendant agrees Plaintiff is the prevailing party for purposes of said fee motion.” (Motion, p. 1:15-23.)

b. Reasonableness of Attorney’s Fees Amount

As discussed, the standard method for calculating reasonable attorney’s fees is the lodestar method, which determines recoverable fees by multiplying the reasonable hourly rate of the attorneys by the reasonable number of hours billed for the work performed.

i. Reasonableness of Attorneys’ Hourly Rates

The Declaration of Neal F. Morrow, III, Plaintiff’s counsel, sets forth the autobiographies and hourly rates for three billing attorneys, and the hourly rates of paralegals who worked on this case. The hourly rates and are as follows:

1. Neal F. Morrow, Founding Partner of MFS Legal, Inc. (MFS) (\$695/hr.) – admitted to the California Bar in January of 2014;
2. Christian Corona, Associate Attorney at MFS (\$400/hr.) – admitted to the California Bar in November of 2024;
3. Melanie Maxfield, Associate Attorney at MFS (\$400/hr.) – admitted to the California Bar in August of 2023;
4. Paralegals of MFS (\$150/hr.).

Defendant argues that Plaintiff failed to establish the reasonableness of the rates for all billing attorneys and paralegals because Morrow cites to no attorneys with similar rates in Los Angeles County or provide any Court orders approving the

rates requested. (Opp., p. 6:12-16.) Defendant argues this warrants the line item reductions requested (discussed below). (Opp., p. 6:20-22.)

On reply, Plaintiff provides the 2025-2026 Laffey Matrix as a benchmark for reasonable contingency-based hourly rates based on years of experience, subject to appropriate adjustments. (Reply, p. 4:19-5:10.)

Based on the Morrow Declaration and the Court's experience, the Court finds Plaintiff's requested hourly rates are reasonable for practitioners with comparable experience in Song-Beverly matters. (See *Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 473-474 [approving \$575 per hour in Los Angeles lemon-law litigation].) Given Mr. Morrow's role as a founding partner, the Court is persuaded his higher rate is justified by his particular expertise. Because of Mr. Morrow's unique situation as a founding partner, the approval of his rate would not in most cases serve as a benchmark for rates charged by other partners in other representations.

Accordingly, the rate requested by Plaintiff's counsel is accepted as requested.

ii. Reasonableness of Hours Billed

Morrow contents Plaintiff's counsel reasonably billed for 17.6 hours of work done on this case, including for the filing of the instant fee motion and provides detailing billing records for the work done. (Morrow Decl., ¶ 9, Ex. 1.)

In opposition, Defendant argues that Plaintiff's request should be denied or significantly reduced by 9.95 hours, totaling \$4,969.38 for billed work not actually, reasonably, or necessarily incurred. (Opp., p. 5:23-24.)

Defendant specifically objects to the following charges and requests the specified reduction:

1. Templated Complaint – 1.2 hours (\$616.00) billed on April 13, 2025 – reduce by 0.7 hours (\$486.50) (Opp., p. 4:4-11);
2. Fee Motion – 2.2 hours (\$1,420.00) billed on April 29 and May 4, 2026, and 3.0 hours anticipated (\$2,085.00) – strike anticipated time entirely (Opp., p. 4:12-22);
3. Pre-Litigation Work – 0.4 hours (\$278.00) billed on March 17, 2025 – strike entirely (Opp., p. 4:23-5:5);
4. Clerical and Administrative Tasks – 1.5 hours (\$225.00) billed throughout case – strike entirely (Opp., p. 5:6-15);
5. Redundant Review and Client Correspondence – 5.8 hours (\$2,526.50) billed throughout the case – reduce by 4.35 hours (\$1,894.88) (Opp., p. 5:16-22).

On reply, Plaintiff argues that the costs incurred and hours billed were reasonably and actually incurred.

The prevailing party has the burden of showing that the requested attorney fees were "reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Robertson, supra, 144 Cal.App.4th at 817.) The party seeking attorney fees "is not necessarily entitled to compensation for the value of attorney services according to [his] own notion or to the full extent claimed by [him]." (Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816.) Therefore, if the "time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

The detailed billing records Plaintiff has submitted to validate the billed hours for which Plaintiff requests reimbursement "are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford, supra, 132 Cal.App.4th at p. 396.) On presentation of a detailed fee bill, accompanied by a sworn affidavit as to the accuracy of the fee bill, the bill is presumed credible, and the court must use these records as a starting point for its lodestar determination. (Id at 396-97.)

Here, the Court finds much of Plaintiff's counsel's billing reasonable. From March 17, 2025 through May 4, 2026, Plaintiff's counsel billed for reasonable work, including preparing and drafting the summons and complaint, drafting initial disclosures, client communication, review of Defendant's filings, communications with Defense counsel, calculations, discussions, and review related to settlement offers and repurchase of the Vehicle, drafting the present motion, and anticipated time for drafting a reply and attending the hearing. (Morrow Decl., Ex. 1.)

While reliance on templated drafts is common and can significantly reduce an attorney's work, counsel is still expected to review these templates and modify them accordingly, considering the specific legal issues raised, the facts of the case, and conducting further research where necessary. The same is true for review of discovery production.

However, having reviewed the conformed pleadings, the Court agrees with Defendant that the fees billed for drafting the pleadings should be reduced by 0.4 hours to 0.8 hours, for a reduction of \$60.00.

The Court does not find it appropriate to reduce or strike billing entries for client communication. Attorneys have a legal and ethical obligation to promptly provide their clients with updates and advise them on the progress of their case, and the Court finds the entries related to client communication reasonable, necessary, and appropriate.

The Court notes that the fees billed for Plaintiff's counsel's hours spent in the commencement of this action, including pre-litigation work done on the case, are recoverable, including case review and evaluation.

The Court finds 2.2 hours in preparing the present motion reasonable, though strikes clerical and unnecessary review from this total as discussed below. The Court finds 3.0 hours in anticipated fees excessive in light of the simplicity of Defendant's opposition and Plaintiff's reply. The Court finds 1.0 hour reasonable for appearance at the hearing and 1.5 hours reasonable for review and preparation of the reply. The Court strikes 0.5 hours for a reduction of \$347.50.

The Court also agrees in part with Defendant's characterization of some of these charges as secretarial or clerical in nature, and notes that some of these entries do not constitute substantive legal work. While calendaring dates, properly recording and saving client files and Court documents, and coordinating appearances by counsel are important and necessary tasks in litigation, these tasks are secretarial in nature and do not warrant attorney, or even paralegal, billing. As the United States Supreme Court has held: "Of course, purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them. What the court in Johnson v. Georgia Highway Express, Inc., 488 F. 2d 714, 717 (1974), said in regard to the work of attorneys is applicable by analogy to paralegals: 'It is appropriate to distinguish between legal work, in the strict sense, and investigation, clerical work, compilation of facts and statistics and other work which can often be accomplished by non-lawyers but which a lawyer may do because he has no other help available. Such non-legal work may command a lesser rate. Its dollar value is not enhanced just because a lawyer does it.'" (Missouri v. Jenkins (1989) 491 U.S. 274, 288 n.10.) Thus, while the Court finds the time spent on this task to be reasonable absent evidence to the contrary, billing these tasks as attorney or paralegal fees is unwarranted. The Court also finds some review entries which appear excessive.

Therefore, the Court strikes or reduces the following billing entry for being secretarial by nature or otherwise excessive:

1. 04/14/2025 – 0.1 stricken (\$15) billed for "Communication with Legal Document Server (LDS) regarding filing complaint."
2. 06/05/2025 – 0.2 stricken (\$139) billed for "Review Defendant (manufacturer) Answer."

3. 01/12/2026 – 0.2 stricken (\$80) billed for “Review release and update file.”

4. 05/04/2026 – 0.5 stricken (\$347.50) billed for “Further review of Plaintiff’s billing entries and Exhibit 1 in support of Plaintiff’s fee motion.” (The Court notes no work was done on the Motion after April 29, 2026, so this review appears unreasonable and unrelated to the filing of the motion. To the extent that these statements were being redacted or audited, the Court does not find this work recoverable.)

5. Undated – 0.2 stricken (\$30) billed for “Finalize and file Plaintiff’s fee motion documents.”

Accordingly, aside from the entries specifically identified above as being reduced or stricken entirely, the Court finds these billing entries reasonable and necessarily incurred in litigation absent evidence from Defendant to the contrary.

iii. Lodestar Calculation

Based on the foregoing, the Court calculates the amount of reasonable attorney’s fees Plaintiff is entitled to recover by multiplying the number of reasonably billed hours for work on this case by the reasonable hourly rate of the billing attorneys.

From Plaintiff’s \$8,668.50 attorney’s fee request for 17.6 hours, the Court strikes \$1,019 for 2.1 hours stricken.

Accordingly, Plaintiff is entitled to recover \$7,649.50 in reasonably incurred attorney’s fees.

c. Costs and Expenses

Plaintiff requests costs and expenses totaling \$585.85 for filing fees for the complaint, service of process, proof of personal service, case management statement, notice of settlement, and notice of settlement of the entire case. (Marrow Decl., Ex. 2.) Counsel has also attached invoices for these costs incurred. (Ibid.)

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) “Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (Code Civ. Proc., § 1033.5, subd. (c)(2).) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.” (Ladas v. California State Auto. Assn. (1993) 19 Cal. App. 4th 761, 774.) “On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” (Ibid.)

“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Cal. Rules of Court, rule 3.1700(a)(1).) “Any notice of motion to strike or tax costs must be served and filed 15 days after service of the cost memorandum.” (Cal. Rules of Court, rule 3.1700(b)(1).)

In opposition to Plaintiff’s request, Defendant requests that the Court reduce the costs in the amount of \$44.35 on the grounds that the filing fees associated with Plaintiff’s case management statement and notice of settlement are routine administrative costs and are not recoverable from Defendant. (Opp., p. 7:1-5.)

To start, the Court must permit the prevailing buyer to recover such costs and expenses if reasonably incurred by the buyer in connection with the commencement and prosecution of the action. (Civ. Code, § 1794, subd. (d).) The party filing a memorandum of costs is not required to attach any supporting documents. (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) “[A] verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary.” (Bender v. County of Los Angeles (2013) 217 Cal.App.4th 968, 989, internal citations omitted; see also Benach v. County of Los Angeles (2007) 149 Cal.App.4th 836, 855; Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131-132 [“trial court erred in requiring additional proof from” the party claiming costs when party opposing costs bore the burden of proving the cost unnecessary or unreasonable]; Santantonio v. Westinghouse Broadcasting Co. (1994) 25 Cal.App.4th 102, 116, 121 [“where a party shows a prima facie entitlement to costs, the burden is on an objector to prove the costs should be disallowed”].) The burden is on the party opposing the memorandum to either (a) show that the request is facially improper or (b) produce some evidence to show that the request is improper. (Bender, supra, 217 Cal.App.4th at 989.)

Here, the burden is on Defendant to show that the costs included on Plaintiff’s Memorandums of Costs are unreasonable. Defendant has provided no evidence that any of these fees or costs are unreasonable or non-recoverable.

In the absence of evidence or argument to the contrary, the Court finds that Plaintiff’s request of \$585.85 in costs is reasonable and recoverable.

Accordingly, Plaintiff’s request for attorney’s fees, costs, and expenses incurred in prosecuting this litigation is GRANTED in the total amount of \$8,235.35, consisting of \$7,649.50 in attorney’s fees and \$585.85 in costs.

IV. Conclusion

Plaintiff Lillian Louise Johnson’s Motion for Attorney’s Fees is GRANTED in the amount of \$8,235.35.